19 October 2026

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WC/2024/227 - Cory Lea Shepherd v Workers' Compensation Regulator

Matters that may be agreed before the section 552A conference; the Schedule of 1 October 2026, updated

Dear Ms Matheson,

Thank you for your emails of 12 and 16 October 2026 confirming the veracity of the documents at Tabs 1, 5, 17 to 19, 21 to 23 and 31 of Annexure A and of the documents at Tab 32, and for your email of 19 October 2026 with counsel's availability for the conference.

The documents. With those confirmations, 38 of the 39 documents at Annexure A to the notices to admit served on 28 August 2026 are admitted or confirmed; Tab 24 is the only one outstanding. The Schedule to my letter of 1 October 2026 is enclosed, updated to 19 October 2026. Part 1 shows the position of each document, and two short tables follow it: the documents at Tab 32, and the entries in the spreadsheet you provided on 12 October 2026 that facts 228 to 231 record. Parts 2 and 3 are unchanged.

Matters that may be agreed. So that the conference can be used efficiently, and without delaying it, could the Respondent please indicate its position on the following matters by 4.00 pm on Friday 30 October 2026? Any matter that is agreed can then simply be noted at the conference.

1. Facts 228 to 231. These facts, which were not admitted on 8 September 2026, record entries in the Emergency Code Register for 17, 18 and 19 March 2024. The same entries appear in the spreadsheet "2024 Emergency Code Register_16 to 20 March 2024.xlsx" that you provided on 12 October 2026 and whose veracity the Respondent has confirmed; the table after Part 1 of the Schedule identifies them by row. Now that the spreadsheet is confirmed, does the Respondent admit facts 228 to 231?

2. Tender. Does the Respondent agree that the 38 documents at Annexure A that are admitted or confirmed, and the document at Tab 32A, may be tendered at any hearing without further proof, either in the form at Annexure A or, for the nine documents you provided on 12 October 2026, in that form? Could the Respondent also say whether it maintains its dispute as to the authenticity of the copy at Tab 24 and, if it does, on what ground?

3. Relevance and admissibility. Your letter of 8 September 2026 and your email of 16 October 2026 reserve the right to object to the relevance or admissibility of any fact or document at the hearing. So that any such objection can be identified at the conference rather than at the hearing, could the Respondent please identify any admitted fact, and any document at Annexure A or Tab 32A, whose relevance or admissibility it intends to dispute, and the ground?

As the proposed Second Amended Form 9A states (Part C, paragraph 8), the admissions are relied on as evidence that the documents admitted exist and of what they say, and as evidence of what the Respondent's statement of facts and contentions and List of Documents do not contain; the Appellant does not contend that any admission decides whether any conduct was reasonable. Agreeing to tender, or confirming that no objection is taken to relevance or admissibility, would not require the Respondent to accept the truth of any statement in a document. The weight of each document, and whether any conduct was reasonable management action taken in a reasonable way, remain matters for the Commission.

4. Section 32(1). Review Decision 69983 states, under the heading "Conclusion", that the Appellant "sustained a personal injury of a psychological nature" and that the "injury arose out of employment, to the extent that it arose out of factors 2, 3 and 4, where employment was a significant contributing factor" (facts 261 and 262, admitted); the claim was rejected under section 32(5) of the Act. The Appellant accepts that the hearing is de novo and that no finding in the decision binds the Commission; the question is whether these matters can be agreed. Does the Respondent agree that, to that extent, the elements of section 32(1) are not in issue, so that the issue for any hearing is confined to section 32(5)?

5. Leave. Does the Respondent consent to leave to file the proposed Second Amended Statement of Facts and Contentions provided on 1 October 2026? If it intends to amend its own statement of facts and contentions in response, how much time does it seek? Once facts 228 to 231 are admitted, I may then provide a completed version of the proposed statement, with any changes from the version provided on 1 October 2026 noted. Any change will add no new stressor or allegation.

6. Paragraph 27. At the conference I will ask which management action the Respondent relies on for the contention in paragraph 27 of its amended statement of facts and contentions (fact 303), so that the issues for any hearing can be identified.

To the extent these matters are not agreed, I will ask the Commission at the conference to deal with them and, if necessary, to make directions or to list the matter for mention.

Yours sincerely,



Cory Lea Shepherd, Appellant (self-represented)

Enclosure: Schedule to the Appellant's letter of 1 October 2026, updated to 19 October 2026 (Parts 1 to 3).

WC/2024/227 - Schedule to the Appellant's letter of 1 October 2026, updated to 19 October 2026

The schedule is reproduced as provided on 1 October 2026. Only Part 1 is updated: its introduction, the new column "12 Oct 2026", the column "Position now" and the note after the table; two tables are added after it, for the documents at Tab 32 and for facts 228 to 231. Parts 2 and 3 are unchanged.

Schedule, Part 1: the 39 documents at Annexure A (notices to admit served 28 August 2026) and their status

The 39 documents at Annexure A to the notices to admit served 28 August 2026 are the documents from which the facts in Part B of the proposed Second Amended Form 9A are drawn. On 8 September 2026 the Respondent admitted the authenticity of 25 of them and disputed 14. By email of 24 September 2026 it confirmed four of the 14 "upon further review of the appeal file", stated that it had "requested copies of these documents to be disclosed from MSH" for nine others, and did not mention the fourteenth. By email of 12 October 2026 it provided disclosure copies of those nine documents, Tab 31 as the spreadsheet "2024 Emergency Code Register_16 to 20 March 2024.xlsx", and stated: "The regulator confirms the veracity of the attached documents." Thirty-eight of the 39 documents are therefore admitted or confirmed; the fourteenth, Tab 24, has not been addressed. The facts recorded in 13 of the 14 were admitted on 8 September 2026 to the extent set out in Part B; the exception is the register at Tab 31, from which facts 228 to 231 were not admitted. The table after Part 1 identifies, by row of that spreadsheet, the entries that facts 228 to 231 record.

Tab	Document	Date	8 Sep 2026	24 Sep 2026	12 Oct 2026	Position now
1A	Stibbard to the Switchboard team, "Hello & Update"	18 Jul 2023, 12:56 pm	Admitted	-	-	Admitted; tender proposed
1B	Taylor to Reese, "Fwd: Communication Book Update", with her email to Logan Switch of 9:57 am that day	6 Jun 2023, 4:05 pm	Admitted	-	-	Admitted; tender proposed
2	"Increase of hours and Workplace issues" chain and Reese's replies	7-10 Aug 2023	Admitted	-	-	Admitted; tender proposed
3	Reese attaching HR Policy E12; emails of 4 and 8 Sep 2023	29 Aug-8 Sep 2023	Admitted	-	-	Admitted; tender proposed
4	"Request to Increase Working Hours to Full Time Rotational Roster"; emails of 7 Aug 2023 1:43 pm and 5:11 pm	7 and 31 Aug 2023	Admitted	-	-	Admitted; tender proposed
7	"Roster Concerns" chain	26 Apr-8 May 2024	Admitted	-	-	Admitted; tender proposed
8	Reese to Pritchard "FW: Roster Concerns"; Reese to LBH_HR attaching qh-gdl-401-3.3	10 and 20 May 2024	Admitted	-	-	Admitted; tender proposed
8A	Cover page, Fatigue risk management systems implementation guideline QH-GDL-401-3.3:2021	2021	Admitted	-	-	Admitted; tender proposed

Tab	Document	Date	8 Sep 2026	24 Sep 2026	12 Oct 2026	Position now
8B	MASPER emails (Taylor to Kwok and Wong; "MASPER process") and issue logs	9 May 2024 (logs 2-8 May)	Admitted	-	-	Admitted; tender proposed
8C	Stibbard, "Switchboard After Hours On Call Manager PP24"	13 May 2024, 4:29 pm	Admitted	-	-	Admitted; tender proposed
9	Taylor, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	Admitted	-	-	Admitted; tender proposed
9A	"Office Hours and Departmental Directives" chain (1:15 pm, 6:23 pm, 7:09 pm)	15 May 2024	Admitted	-	-	Admitted; tender proposed
9B	Reese, "RE: Office Hours and Departmental Directives"	21 May 2024, 2:53 pm	Admitted	-	-	Admitted; tender proposed
10	Taylor, "Sick leave 14.05.24", and its forwarding to Reese	14-15 May 2024 (first email 14 May, 12:08 pm)	Admitted	-	-	Admitted; tender proposed
11	Marriott (Integrated Respiratory Service) to Logan Switch; the Appellant to Taylor; Taylor's reply	15 and 20 May 2024	Admitted	-	-	Admitted; tender proposed
12	"Corey Shepherd 388372 Pay issues" thread	3-13 May 2024	Admitted	-	-	Admitted; tender proposed
13	Same thread, Taylor to the Appellant	21 May 2024, 12:33 pm	Admitted	-	-	Admitted; tender proposed
14	Taylor, "Validation of Claims older than 3 months - Please sign"	28 May 2024, 8:36 am	Admitted	-	-	Admitted; tender proposed
15	myHR submissions report (MSH Item 11)	1 Feb-31 May 2024	Admitted	-	-	Admitted; tender proposed
16	QH Leave Takings Report (MSH Item 15)	19 Mar 2024	Admitted	-	-	Admitted; tender proposed
25	Review Decision 69983	24 Oct 2024	Admitted	-	-	Admitted; tender proposed
26	Appellant's first notice to admit facts	before 18 Feb 2026	Admitted	-	-	Admitted; tender proposed
27	Respondent's response to that notice	18 Feb 2026	Admitted	-	-	Admitted; tender proposed

Tab	Document	Date	8 Sep 2026	24 Sep 2026	12 Oct 2026	Position now
28	myHR leave request history, Process Reference 15480560 (MSH Item 11)	20 Feb-1 Mar 2024	Admitted	-	-	Admitted; tender proposed
29	Instrument of Human Resource Sub-Delegation, Paid Special Pandemic Leave (MSH Item 13)	eff. 5 Dec 2022	Admitted	-	-	Admitted; tender proposed
6	Taylor, "Afterhours Oncall Process - Switchboard" (Stressor 1(f))	15 Apr 2024, 12:39 pm	Disputed	Confirmed by the Respondent	-	Veracity confirmed; tender proposed
20	Metro South to Commissioner Dwyer, K-LM26/729, signed by the Chief Executive (supporting records under Stressors 1 and 3)	5 Jun 2026	Disputed	Confirmed by the Respondent	-	Veracity confirmed; tender proposed
30	Taylor, "What's Chloe's Hours?!" (Stressor 1(d))	23 Aug 2023, 2:18 pm	Disputed	Confirmed by the Respondent	-	Veracity confirmed; tender proposed
30A	Taylor, "Good morning Team." (Stressor 1, supporting records)	18 Jun 2024, 8:58 am	Disputed	Confirmed by the Respondent	-	Veracity confirmed; tender proposed
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
5	Taylor, "Approved - Permanent Full Time FTE"	27 Sep 2023, 1:52 pm	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
17	Movement form, approved by Mr Hughes as delegate, recording "Continuous Shift Worker"	27 Feb 2026	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
18	Movement form, approved by Mr Hughes, recording "Continuous Shift Worker"	17 Apr 2026	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
19	Movement form, approved by Mr Hughes, recording "Continuous Shift Worker"	9 Jun 2026	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed

Tab	Document	Date	8 Sep 2026	24 Sep 2026	12 Oct 2026	Position now
21	Forrest, Senior Consultant Human Resources, to the Appellant, stating that the 8-hour agreement "is only applied where staff initiated shift swaps have occurred"	7 Jul 2026	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
22	Consultation Paper, Proposed Rosters for Switchboard Services, signed by Mr Hughes 12 Nov 2024	Nov 2024	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
23	Consultation outcome, Proposed Rosters, signed by Mr Hughes 12 Dec 2024	Dec 2024	Disputed	Referred by the Respondent to Metro South for copies	Copy provided; confirmed	Veracity confirmed; tender proposed
31	Screen capture, "2024 Emergency Code Register.xlsx", March 2024 sheet, entries 16-20 Mar 2024 (Stressors 3(b) and 3(c))	Mar 2024	Disputed	Referred by the Respondent to Metro South for copies	Spreadsheet provided; confirmed	Veracity of the spreadsheet confirmed; tender proposed. Facts 228-231 not admitted (see the table after Part 1)
24	Moran, Organiser, Together Queensland, to Jeffrey, Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 Nov 2025	Disputed	Not mentioned	Not mentioned	Outstanding; contents admitted (178-179)

The Appellant asked the Respondent on 9 September 2026 to confirm the ten outstanding documents. The copies of Tabs 1, 5, 17 to 19, 21 to 24 and 31 came from the Appellant's own records; Tabs 17 to 19, 22 and 23 bear the signature of the employer's Director, Corporate Services. On 12 October 2026 the Respondent provided its own copy of each of the ten except Tab 24. Tab 24 is a Together Queensland document, which the emails of 24 September and 12 October 2026 do not address.

Documents at Tab 32 (provided to the Respondent on 7 October 2026). Metro South Health enclosed both documents with its letter of 5 June 2026 (Tab 20). In answer to the Appellant's request under rule 49 of the *Industrial Relations (Tribunals) Rules 2011*, the Respondent stated by email of 16 October 2026: "The Regulator confirms the veracity of these documents."

Tab	Document	Date	16 Oct 2026	Position now
32A	Role Description, Manager Switchboard Services, Logan Hospital (AO4), RD 30478699 (Item 6)	eff. June 2020	Confirmed by the Respondent	Veracity confirmed; tender proposed
32B	Instrument of Human Resource Sub-Delegation, COVID-19 Pandemic Event - Paid Special Pandemic Leave (Item 13); the same instrument as Tab 29	signed 23 Nov 2022	Confirmed by the Respondent	Admitted (as Tab 29); tender proposed

Facts 228 to 231 and the spreadsheet provided on 12 October 2026. The rows are those of the sheet "MARCH 2024" in the spreadsheet, which has the columns DATE, TIME, CODE AND LOCATION, PAGER and EXTRA INFORMATION.

Fact	The fact as served on 28 August 2026 (not admitted on 8 September 2026)	Rows of the sheet "MARCH 2024" in the spreadsheet provided on 12 October 2026
228	A register titled "2024 Emergency Code Register" records, for 17 March 2024, eight entries, including "MET CALL WARD 2H BED 7" at 19:16, "CODE BLUE WARD 2H BED 7" at 19:20 and "MET CALL WARD 2Q BED 5" at 21:16. (Annexure A, Tab 31)	Rows 9 to 16 are the eight entries for 17 March 2024. The three entries quoted are rows 14, 15 and 16.
229	That register records, for 18 March 2024: "CODE GREY QAS TRIAGE AIRLOCK" at 8:48; "MET CALL WARD 6A BED 8" at 9:20; "MET CALL WARD 3DR BED 14" at 11:31; "CANCELLED MET CALL WARD 3DR BED 14" at 11:32; "NEONATAL MET CALL THEATRE 2" at 11:35; and "NEONATAL MET CALL BIRTH SUITES 5" at 13:09. (Annexure A, Tab 31)	Rows 17 to 22, in the order quoted.
230	Six of the entries recorded in that register for 18 March 2024 bear times between 6:00 and 14:00.	Rows 17 to 22. Row 17 is the first entry for 18 March 2024; the next entry, row 23, is at 14:38.
231	That register records, for 19 March 2024 at 11:34, "MET CALL WARD 2I BED 20" with the notation "CALLED VIA SWITRCHBOARD" [sic]. (Annexure A, Tab 31)	Row 33. The notation is in column E, "EXTRA INFORMATION".

Schedule, Part 2: other documents relied on in the proposed Second Amended Form 9A that are not at Annexure A

Document	Relied on at	Status or source
The Respondent's outlines of the evidence of Ms Taylor, Ms Reese, Ms Wright and Ms Earl	1(l), 2(n) to 2(o), 3(c); Stressor 3 agreement and pleaded-answer paragraphs; Part C, paragraph 5A	Served by the Respondent on 24 September 2026; available to the Commission on request. An outline is not evidence.
The spreadsheet of recorded MET calls for 17 and 18 March 2024	Stressor 3(b)	Metro South Health states that it is available [¶ 268].
The Logan Hospital emergency code procedures referred to in the role description	Stressor 3, the emergency-code context	Referred to in the role description [¶ 8] (Tab 1).
The documents recording the advice of Human Resources on the 8-hour agreement	Referred to in the outlines (first row)	The outlines of Ms Taylor and Ms Reese refer to them; neither identifies them.
The Communication Book	Stressor 1(a); Part B.5.4	Not listed in the Respondent's amended List of Documents of 14 August 2026; paragraph 154 of the notice was not admitted.

Document	Relied on at	Status or source
The Respondent's disclosure of July 2025 headed "Disclosure from witness conferencing - Qld Health Payroll" (24 pages): the email of Ms Christensen, Manager Service Delivery, Payroll, to the Respondent of 11 July 2025, and Payslips 01 to 07, including Payslip 06 (pay date 5 June 2024) and Payslip 07 (pay date 2 July 2025)	2(n) to 2(o); Part B.4	Disclosed by the Respondent in July 2025.
The Respondent's disclosure of 11 June 2026 (10 pages): the leave-form walkthrough for Process Reference 15480560, the emails of 15 May 2024 at 1:15 pm and 6:23 pm, and documents concerning the complaint of 13 May 2024	Stressors 1(e) and 1(l); for 1(i), the date of the complaint only	Disclosed by the Respondent on 11 June 2026.
Queensland Health's Code Blue procedure 001443 (Royal Brisbane and Women's Hospital, version 5, April 2020)	Stressor 3, the emergency-code context: the types of Code Blue and the role of Switchboard Services	Public document.
The Queensland Ombudsman's Neville Report (June 2006) and its 2011 update, and the Coroner's findings of 12 September 2008	Stressor 3, the framework history: the origin of the fatigue framework	Public documents.
The monthly call statistics for April 2025	Stressor 1, the operating conditions; Stressor 3(b), the ordinary-call-load paragraph	The Appellant's own record and evidence (Part B preamble).
Queensland Health Fatigue Risk Management Systems Implementation Guideline QH-GDL-401-3.3:2021 (the full disclosed guideline)	Stressor 3(h) and the supporting fatigue records; the quotations from the guideline	Disclosed in full with the 20 May 2024 email chain on 14 July 2025. Tab 8A at Annexure A is the cover page only.

Schedule, Part 3: index of the dated particulars in the proposed Second Amended Form 9A (index only; not additional stressors). The three stressors are pleaded, with their particulars, in the proposed Second Amended Form 9A; this index adds no stressor or particular. The causal particulars are 1(b), 1(d), 1(f) to 1(h), 1(k) and 1(l); 2(a) to 2(i), 2(l) and 2(m); and 3(b) to 3(f); they are also listed, with their dates and descriptions, under each stressor in the list of stressors in the proposed Second Amended Form 9A. Particulars 1(a), 1(c), 1(e), 1(i), 1(j), 2(j) and 3(a) are context. Particulars 2(k), 2(n), 2(o), 3(g) and 3(h) are the record of how the matters were handled and when the corrections were made; they are relied on as proof, not as separate causes.

No.	Date or date range	Particular	Brief description
1(a)	on or around 6 June 2023	Removal of the Communication Book entry	Entry removed and management response recorded; context only.
1(b)	18 July 2023 to 18 June 2024	Database access and the restricted correction process	Operators lost access; amendments were channelled through specified staff.
1(c)	7 August to 16 October 2023	Roster concerns and the move to full time	Roster error, responses and application for increased hours; context only.

No.	Date or date range	Particular	Brief description
1(d)	23 August 2023 to 17 May 2024	Notification of variable office hours	Variable hours were stated; no intervening statement of fixed hours is alleged.
1(e)	20 February to 1 March 2024	Pandemic leave submissions	Two declines and three submissions; context here and entitlement issue in 2(b).
1(f)	15 April 2024	After hours on call process changed	New process was stated to take effect that day.
1(g)	19 April 2024	Data entry process changed	The review decision records a new checking process following data entry errors.
1(h)	2 to 9 May 2024	Misdirected calls and the MASPER response	Two reports recorded nine occasions before a revised process was communicated.
1(i)	13 May 2024	The complaint of 13 May 2024	Date of the complaint; chronology only, with no causal allegation.
1(j)	13 to 15 May 2024	On-call roster and absence notification instructions	Roster circulated on the first day of the fortnight it covered; notification of unavailability channelled through the manager from 14 May; context only.
1(k)	15 to 20 May 2024	Respiratory directory error and requests for correction	Repeated requests, the Appellant’s escalation and management reply.
1(l)	15 to 21 May 2024	Office hours request and the retraction response	Request for clarity, retraction request, hours clarification and follow-up.
2(a)	9 February 2024	Seven hours recorded instead of eight	The fortnight beginning 5 February was topped up from the RDO balance.
2(b)	20 February to 1 March 2024	Processing of paid pandemic leave	Three submissions and two declines before final approval.
2(c)	28 February 2024	Second shift recorded as seven hours	The fortnight beginning 19 February was also topped up from the RDO balance.
2(d)	fortnight beginning 18 March 2024	Overtime recorded as ordinary shifts	Payroll identified too many ordinary shifts and a need for overtime coding.
2(e)	30 March 2024	Public holiday claim submitted late	Payroll later described the 30 March public holiday claim as submitted late; relied on as Payroll's later account, not as an admission.
2(f)	fortnight beginning 1 April 2024	Hours above the contracted fortnight	Payroll identified a further requirement for overtime coding.
2(g)	8 April to 1 May 2024	Pay enquiry and public holiday review	Enquiry, acknowledgment, follow-up and response; public holiday review remained open.
2(h)	3 May 2024	Payroll directed four fortnight corrections	Payroll directed the manager to submit an AVAC for each affected fortnight.
2(i)	10 to 13 May 2024	Follow-up found no correction	The Appellant followed up; Payroll referred him back to the line manager.

No.	Date or date range	Particular	Brief description
2(j)	15 to 16 May 2024	A completed AVAC recorded	Process 16328886 was submitted on 15 May and completed on 16 May; context only.
2(k)	20 May 2024	HR follow-up about rostering	The Director followed up with HR and attached the fatigue guideline; record only.
2(l)	21 May 2024	Manager awaited Payroll confirmation	The manager said she was still waiting for confirmation.
2(m)	28 to 30 May 2024	Validation request and partly completed AVAC	Validation sought; process 16450619 was recorded as "Part Completed".
2(n)	5 June 2024	Three corrections reached a payslip	Payroll identified adjustments for 28 February, 30 March and 1 April; record of when corrected.
2(o)	30 June to 2 July 2025	Later correction of the 9 February shift	Payroll identified a later amendment and pay date; record of when corrected.
3(a)	7 August to 4 September 2023	Earlier roster error and proposed roster	Rest was offered after an acknowledged error; the Appellant proposed increased hours; context only.
3(b)	17 to 18 March 2024	Consecutive shifts and the seven-hour break	Rostered interval, travel, rest and workload relied on in their operational context.
3(c)	19 March 2024	Sick leave after the consecutive shifts	The record shows 7.60 hours of approved sick leave; the fatigue entitlement is disputed.
3(d)	8 April to 1 May 2024	Fatigue enquiry and refusal	Acknowledged on 9 April; substantive response and refusal after 23 days.
3(e)	16 to 26 April 2024	Roster line error and proposed alternatives	Error acknowledged after the meeting; no subsequent contact about alternatives is alleged.
3(f)	1 to 8 May 2024	Fatigue toolkit raised and HR advice awaited	The Appellant sought action on the toolkit; the Director said she was awaiting advice.
3(g)	10 May 2024	Risk rating and roster decision recorded	The Director recorded his fatigue concerns, a moderate rating and an undisclosed roster decision; internal record.
3(h)	20 May 2024	HR follow-up with the fatigue guideline	The Director followed up her earlier query and attached the guideline; internal record.